

Tentative Rulings for July 31, 2026 Department M302

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M302 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT IN-PERSON OR VIA ZOOM VIDEO WHEN REQUESTING ORAL ARGUMENTS.

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 672 7660**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

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1.

CASE #	CASE NAME	HEARING NAME
CVME2506583	KOLSTAD VS CASA DEL REY MOBILE HOMES ESTATES, L.P.	MOTION TO BIFURCATE

Tentative Ruling: CONTINUED to 8/14/26.

2.

CASE #	CASE NAME	HEARING NAME
CVME2509966	NICHOLSON VS MMJ CONSTRUCTION INC.	DEMURRER

Tentative Ruling: SUSTAIN as to the first, second, fourth, and fifth causes of action. Overrule the demurrer as to the third cause of action. Thirty days leave to amend.

GRANT Nicholson's requests for judicial notice.

This is an employment action. Plaintiffs Bradley Nicholson, Christine Mascarena, and Jerry Dalton Edler filed the operative Complaint against Defendants MMJ Construction, Inc., Judy Lee Bailey-Savage, Brett Lee Baily, and Freedom Ranch & Rescue, Inc. alleging: (1) failure to pay prevailing wages; (2) failure to pay overtime; (3) failure to reimburse expenses; (4) failure to provide compliant rest breaks; (5) failure to provide compliant meal periods; and (6) unfair business practices.

Judy Lee Bailey-Savage then filed a Cross-Complaint against Bradley Nicholson. The court previously sustained a demurrer to the Cross-Complaint with leave to amend.¹ Bailey-Savage amended the pleading and the operative First Amended Cross-Complaint (FACC) alleges: (1) implied indemnity; (2) equitable indemnity; (3) breach of contract; (4) contribution; and (5) declaratory relief. The FACC alleges Bailey-Savage and Nicholson are both directors and officers of MMJ Construction, Inc. (MMJ). (FACC ¶¶1, 2.) Bailey-Savage alleges she is the owner and she entered into a verbal agreement with Nicholson to turn the company over to him. Bailey-Savage alleges during this transition time, Nicholson made decisions and performed actions as an office or director with the company, including hiring the other two plaintiffs as employees. (FACC ¶¶22-23.) The FACC also alleges Nicholson repudiated the agreement to take over the company by lying about his position with the company to the Division of Workers' Compensation Insurance after he totaled the company car and made a workers' compensation claim in which he denied being a principal of the company. (¶25.)

Nicholson brings the instant demurrer to the FACC. Nicholson argues that the deficiencies of the original Cross-Complaint remain. Nicholson argues the amendments made to the pleading do not save the remaining causes of action. Nicholson argues the statute of fraud bars the breach of contract claim. Nicholson argues the citations in the pleading do not support the causes of action.

¹ The Court sustained the demurrer with leave to amend as to the first, second, third, fifth, and sixth causes of action. The Court sustained the demurrer without leave to amend as to the fourth cause of action for breach of fiduciary duty. The FACC no longer contains a breach of fiduciary duty claim.

Bailey-Savage opposes the motion. Bailey-Savage argues the FACC is not uncertain and sufficiently alleges the stated causes of action. Bailey-Savage argues the amendments to the pleading resolve the issues raised by the court in ruling on the prior demurrer.

CCP §430.41 and §435.5 require a meet and confer process via **phone or in person** before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (CCP §430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating how the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (CCP §430.41(a)(3).)

The demurrer is accompanied by the declaration of Alexander Rusnak who sent a meet and confer letter to opposing counsel on April 15, 2026. (Rusnak Decl. ¶8.) Rusnak did not receive a response, so he sent a follow-up email on April 21, 2026. (¶10.) This does not satisfy the meet and confer requirement.

Nevertheless, the merits are discussed below.

Nicholson asks the court to take judicial notice of the court's ruling on the demurrer to the Cross-Complaint. Request is granted per Evidence Code §452(d).

The court previously sustained the demurrer to the original Cross-Complaint for these claims noting "being personally liable to a plaintiff is not the same as being required to indemnify another defendant." (2/19/26 Minute Order.) Bailey-Savage relied on Labor Code §558.1, which permits an owner, officer, director, or managing agent to be held personally liable if they violate a Labor Code provision. However, Bailey-Savage did not provide any authority to support her assertion that Nicholson would owe a joint obligation to the harmed Plaintiffs, meaning he would be required to indemnify Bailey-Savage. (Ibid.)

Bailey-Savage added language to paragraph 2 of the FACC: "Bradley Nicholson was responsible for setting [Mascarena and Edler's] schedule and overseeing the construction work they performed and ensuring compliance with the requirements of Industrial Wage Order 16 related to the work performed by Christine Mascarena, and Jerry Dalton Edler." (FACC ¶2.) Bailey-Savage argues, again without supporting, if she "is held liable to Plaintiffs Mascarena or Edler, it will only be because of the acts of Nicholson and indemnity may be owed by Nicholson to Cross-Complainant." (Opp. p.7:2-4.) Bailey-Savage also cites *Grande v. Eisenhower Medical Center* (2022) 13 Cal.5th 313 but notes that case did not decide the issue of indemnity obligation between employers. (Opp. p.7:16-17.)

Bailey-Savage has not sufficiently amended the FACC to establish these causes of action. Her argument in Opposition to the motion is not based on any authority this court must follow. As such, the demurrer is sustained.

"A cause of action for breach of contract requires pleading of a contract, plaintiff's performance or excuse for failure to perform, defendant's breach and damage to plaintiff resulting therefrom." (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal. App. 4th 1004, 1031.) A contract will be enforced if it is sufficiently definite for the court to ascertain the parties' obligations and to determine whether there has been a breach.

(*Bustamante v. Intuit Inc.* (2006) 141 Cal. App. 4th 199, 209.) To plead a cause of action based on a written contract, a plaintiff may attach a copy of the written contract and incorporate it by reference or plead the terms verbatim or the legal effect of the contract. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199.)

The FACC alleges Nicholson and Bailey-Savage entered into a verbal agreement under which Nicholson was to take over Bailey-Savage's role at MMJ Construction and Bailey-Savage would remain with the company during the transition period to help train Nicholson for his new role. (¶22.) Nicholson acknowledges the FACC now alleges he departed the company, took company employees and property, and left jobs unsupervised. (¶25.) Bailey-Savage alleges she had to stay with the company longer than expected in order to make sure the jobs were staffed. (¶25.)

Nicholson argues that even though the FACC now alleges facts sufficient to demonstrate his alleged breach of the agreement, the claim is still deficient. Specifically, Nicholson argues the agreement is barred by the statute of frauds and is still uncertain because essential terms are not included in the pleading. Nicholson argues the agreement is barred by the statute of limitations because it could not be completed within one year. (Civil Code §1624(a)(1).) However, the language in the FACC does not establish the agreement could not be completed within one year. No dates are provided. This is not a basis on which to sustain the demurrer.

Second, Nicholson argues the agreement bars the statute of fraud because it involves the transfer of a corporate ownership interest. Nicholson cites Civil Code 1624(a)(3), which applies the statute of frauds to a lease agreement for a period longer than one year or the sale of real property. It does not concern transfer of corporate interests. Nicholson also cites Corporations Code §166, but this section concerns distribution by a corporation to its shareholders. Nicholson has not provided any authority to support the contention that an agreement is barred by the statute of frauds if it concerns transfer of a corporate ownership interest. Furthermore, even if Nicholson had provided such authority, the FACC does not allege any transfer of ownership between the parties. Rather, the FACC alleges the parties entered into a verbal contract "with the intention of [Nicholson] take over [Bailey-Savage's] role at MMJ Construction." (¶22.) This does not allege the parties have exchanging any ownership interest in the company. Rather, the FACC alleges Nicholson was to take over Bailey-Savage's job. This is not a basis on which to sustain the demurrer.

Nicholson further argues that the FACC remains uncertain as essential terms are not pleaded. Nicholson argues the FACC does not allege any price, timeline for completion of training, ownership percentage to be transferred, mechanism of transfer, or any conditions on performance. It is not clear, though, that these are essential terms. The FACC alleges the parties had an agreement that Nicholson would take over Bailey-Savage's role at MMJ. Nicholson then allegedly breached that agreement when he left the company and took Mascarena and Edler with him. When he left the company, he took company property and forced Bailey-Savage to stay longer with the company than she had originally intended, which caused her harm. (¶25.) Ultimately, the FACC alleges a claim for breach of contract. Accordingly, the Demurrer is overruled.

Nicholson argues the court sustained the original demurrer because Bailey-Savage did not offer any authority establishing Nicholson owed a joint obligation to Plaintiffs of the same type as Bailey-Savage's, such that contribution could flow between them. The FACC adds citations to CCP §§875-876 and Civil Code §1432. CCP §875 provides for contribution among two or more defendants in a tort action. This is a labor and employment action, so it is not clear that this statute applies. Civil Code §1432 states: "a party to a joint, or joint and several obligations, who satisfies more than his share of the claim against all, may require a proportionate contribution from all the parties joined with him." A right of contribution is related to some former transactions, be it actual or implied, and may be the subject of an express contract. In the absence of an express contract the right may exist by operation of law, under which circumstance it exists as a complete legal entity only. (*Pacific Freight Lines v. Pioneer Express Co.* (1940) 39 Cal.App.2d 609.)

The mere citation to these code sections does not fix the deficiencies from the original Cross-Complaint. The Opposition does not explain how or why the allegations in the FACC are sufficient to sustain this cause of action.

The declaratory relief cause of action is derivative of the indemnity and contribution claims. Since those claims are insufficiently alleged, so is this claim.

3.

CASE #	CASE NAME	HEARING NAME
CVME2510655	ANCHELOWITZ VS INLAND PSYCHIATRIC MEDICAL GROUP, INC.	DEMURRERS

Tentative Ruling: OVERRULE as to the 1st, 2nd, and 4th causes of action and SUSTAIN as to the third cause of action, with 20 days' leave to amend.

GRANT the motion to strike.

This is a medical malpractice litigation initiated on September 10, 2025, by Plaintiff Louis Anchelowitz against Inland Psychiatric Medical Group, Inc. ("IPMG"), Chika Ugwu, PMHNP ("Ugwu"), and Syam P. Kunam, M.D. ("Dr. Kunam"). Plaintiff alleges he sustained injuries while under the care of IPMG and its medical professionals, including Dr. Kunam. Prior to July 31, 2024, Plaintiff had no right arm nerve injury, no functional impairment of the right upper extremity, and no history of injection-related complications. Ugwu prescribed Uzedy injections for Plaintiff, which medical assistant Adrianna Montrose ("Montrose") administered on July 31, 2024, and medical assistant Summer Garcia ("Garcia") administered on September 3 and October 1, 2024. During the September 3, 2024, injection, Plaintiff experienced an immediate electric shock-like sensation radiating through the right arm, consistent with nerve contact. Although Plaintiff reported the pain, Garcia continued injection. Plaintiff reported pain from the injection on September 8, October 7, November 4, December 2, and January 11, 2025. Plaintiff alleges Defendants created inaccurate records relating to Plaintiff's injections and failed to correct the inaccuracies even after Plaintiff submitted corrections.

The operative SAC filed March 20, 2026, asserts causes of action for (1) Professional Negligence (against all Defendants), (2) Negligence (Supervision) against IPMG and

Kunam, (3) Fraud (against all Defendants), and (4) Negligent Infliction of Emotional Distress (“NIED”).

Dr. Kunam and IPMG (“Defendants”) now demur to the SAC, arguing the first two causes of action fail to state facts sufficient, that the fraud claim fails to plead fraud with the requisite particularity, and NIED is not a standalone tort.

In opposition, Plaintiff maintains the SAC is sufficiently plead to assert causes of action for negligence and negligent supervision. Plaintiff asserts the SAC sufficiently alleges notice and causation. Alternatively, Plaintiff requests leave to amend.

In reply, Defendants argue Plaintiff’s untimely opposition should be disregarded. Even if it is considered, Plaintiff’s opposition does not cure the defects identified in the demurrer.

Plaintiff’s opposition, filed June 22, 2026, is untimely pursuant to Code of Civil Procedure section 1005, subdivision (b). Opposition papers must be served and filed at least nine (9) court days before the hearing date “unless otherwise ordered or specifically provided by law.” (Code Civ. Proc., § 1005, subd. (b).) Because Plaintiff served Defendants by first class mail, the period of notice “shall be extended five calendar days” upon service by mail. (Code Civ. Proc., § 1013, subd. (a).) Accordingly, Plaintiff was required to serve and file his opposition by July 15, 2026. Although Defendants argue the late filing prejudiced their ability to address Plaintiff’s assertions, in reply, Defendants argue the merits, which the court can treat as a waiver of the defect. (*Alliance Bank v. Murray* (1984) 161 Cal.App.3d 1, 7; *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.) Accordingly, the Court proceeds on the merits.

Before filing a demurrer, the moving party shall meet and confer, at least 5 days before a responsive pleading is due, in person, by telephone, or video conference, with the party who filed the pleading for purposes of seeing if a resolution can be had to the objections raised in the demurrer motion. (Code Civ. Proc., §§410.41, subd. (a), 435, subds. (a)(1)-(2).) The demurring party must file a declaration stating how the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (Code Civ. Proc., §430.41, subd. (a)(3).) Plaintiff never replied to Defendant’s voicemail and subsequent meet and confer letter mailed. (Lam Decl., ¶2.) In the instant matter, the parties did not conduct a Code-compliant meet and confer as Defendants sent an email only. (Mahmoudi Decl., ¶3.)

Moving on to the merits, Plaintiff submits his own declaration attesting to facts relating to his case. This is extrinsic evidence for which the Court may not consider in ruling on the demurrer. (See, e.g., *Afuso v. United States Fid. & Guar. Co., Inc.* (1985) 169 Cal.App.3d 859, 852, disapproved on other grounds in *Moradi-Shalal v. Fireman’s Funds Ins. Cos.* (1988) 46 Cal.3d 287 [error for court to consider contents of release which was not part of any court record].) Thus, the declaration is not considered in the analysis of the merits.

Defendants argue this claim is conclusory and lacks causation facts.

In any medical malpractice action, the plaintiff must establish: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal

connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence. (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 606.)

Here, the SAC alleges that the izedy injection “must be administered subcutaneously using proper technique, including appropriate site selection, depth, and preparation.” (SAC ¶12.) “Deviation from proper subcutaneous technique creates a foreseeable risk of nerve contact and injury.” (*Id.* at ¶13.) Plaintiff alleges that when he reported the pain he experienced from the injection on September 3, 2024, “[d]espite this warning sign, the injection was continued. Garcia failed to properly prepare the injection and failed to pinch the skin.” (*Id.* at ¶14.)

The complaint is sufficient if it alleges ultimate rather than evidentiary facts, and the plaintiff is required only to set forth the essential facts of the case with “reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) As pled, the SAC sufficiently alleges facts for Defendants to be acquainted with the nature, source and extent of the Plaintiff's claim. To that end, the Court overrules the demurrer as to the 1st cause of action.

As to negligent supervision, Defendants argue this claim is insufficiently pled as it contains no allegations of prior incidents, no notice, and no facts establishing how any purported lack of supervision caused the injury.

“‘Liability for negligent hiring retention or supervision of an employee is one of direct liability for negligence, not vicarious liability.’ [Citation.]” (*Philips v. TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1139.) An employer can be liable for negligent entrustment, hiring, or retention only if the employee is found to have been negligent. (*Diaz v. Carcamo* (2011) 51 Cal.4th 1148, 1159.) Since Plaintiff sufficiently alleged a cause of action for negligence, for purposes of demurrer, the SAC has sufficiently stated a cause of action for negligent supervision. As to this cause of action, the Court overrules the demurrer as to this cause of action.

Defendants argue Plaintiff's fraud claim fails to allege facts to the requisite specificity required.

The elements of fraud are: (1) misrepresentation or concealment, (2) knowledge of falsity, (3) intent to defraud, (4) justifiable reliance, and (5) resulting damage. (*Lovejoy v. AT&T Corp.* (2004) 119 Cal.App.4th 151, 157-158.) Every element of this claim must be pleaded factually and specifically, and the policy of liberal pleading does not apply. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47.) This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (*Lazar v. Superior Court* (1996) 12 Ca.4th 631, 645.) However, the specificity requirements of fraud are “relaxed when it is apparent from the allegations that the defendant necessarily possesses knowledge of the facts.” (*Quelimane, supra*, 19 Cal.4th at 27.) Here, it is apparent Defendants necessarily possess knowledge of the facts.

The SAC alleges Defendants made false representations in medical records including Plaintiff “tolerated well” and incorrect dates. (SAC ¶¶37.) The SAC alleges these statements are false because Plaintiff suffered immediate injury on September 3, 2024. (*Id.* at ¶38.) Defendants knew these statements were false based on prior documented complaints. (*Id.* at ¶39.) On September 3, 2024, Plaintiff reported the stinging pain of the injection when Garcia administered it, and that despite this warning, the injection was continued. (*Id.* at ¶14.) On September 9, 2024, Plaintiff reported to Ugwu that the injection hit a nerve. (*Id.* at ¶15.) Plaintiff continued to report pain on October 7, November 4, and December 2024 and January 11, 2025. (*Id.* at ¶¶16-19.) Although Plaintiff submitted correction requests to IPMG’s records department, Defendants failed to correct the inaccuracies. (*Id.* at ¶¶25-26.) Plaintiff sustained nerve damage from the improperly administered injection. (*Id.* at ¶19.)

However, where the SAC falls short is allegation relating to justifiable reliance. The SAC fails to allege how the false medical records were justifiably relied on by Plaintiff. As such, the Court sustains the demurrer with 20 days leave to amend.

Defendants argue NIED is not a standalone tort and is duplicative of negligence. Defendants argue it should be dismissed without leave to amend.

Negligent infliction of emotional distress is not a separate tort but is a species of negligence. (*Downey v. City of Riverside* (2024) 16 Cal.5th 539, 547; *Marlene F. v. Affiliated psychiatric Med. Clinic, Inc.* (1989) 48 Cal.3d 583, 588.) Because NIED is a form of negligence, “[the] traditional elements of duty, breach of duty, causation, and damages apply. (*Downey, supra*, 16 Cal.5th at 547, (internal quotes omitted); *Arista v. County of Riverside* (2018) 29 Cal.App.5th 1051, 1062-1063.) Where a plaintiff is physically injured, damages for resulting emotional distress are recoverable as “parasitic” damages. (*Potter v. Firestone Tire & Rubber co.* (1993) 6 Cal.4th 965, 981.)

Courts have long held that a duplicative cause of action is also a basis for sustaining a demurrer. (See *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268 [duplicative cause of action for breach of fiduciary duty subject to dismissal by way of demurrer]; *Award Metals, Inc. v. Superior Court* (1991) Cal.App.3d 1128, 1135 [demurrer properly sustained to duplicative negligence cause of action].) However, although other courts have disagreed regarding a “duplicative” challenge, the Court should not sustain the demurrer at the pleading stage on that basis. (See *Palm Springs Villas II Homeowners Assn., supra*, 248 Cal.App.4th at 290.) This is especially true since the *Blickman Turkus Court* explained: “This is the sort of defect that, if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment.” (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 890.)

As to the Motion to Strike, Defendants concurrently move to strike portions of the SAC concerning Plaintiff’s prayer for punitive damages, to wit: ¶¶5, 37-41, 45, 47-51.

A motion to strike can be used to attack claims for damage (e.g., punitive damages) that are not supported by the cause of action as pleaded. “[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer.” (*Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340, 342.) Here, except for negligence,

Plaintiff has not alleged any viable claim based on an intentional tort. Code of Civil Procedure section 425.13 requires a plaintiff to obtain leave of court before asserting a claim for punitive damages in any action arising out of the professional negligence of a "health care provider." Without such an order, the punitive damages claim is subject to a motion to strike. (*United Western Medical Centers v. Superior Court* (1996) 42 Cal.App.4th 500, 504-505.)

"The court may allow the filing of an amended pleading claiming punitive damages on a motion by the party seeking the amended pleading and on the basis of the supporting and opposing affidavits presented that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code." (Code Civ. Proc., § 425.13, subd. (a).)

4.

CASE #	CASE NAME	HEARING NAME
CVME2510655	ANCHELOWITZ VS INLAND PSYCHIATRIC MEDICAL GROUP, INC.	MOTIONS TO STRIKE

Tentative Ruling: GRANTED, see above.

5.

CASE #	CASE NAME	HEARING NAME
CVME2600179	HIGHTOWER VS AUSTIN	MOTION TO SET ASIDE DEFAULT

Tentative Ruling: GRANTED.

6.

CASE #	CASE NAME	HEARING NAME
CVSW2105307	WALKER VS FCA US, LLC	MOTION FOR ATTORNEY'S FEES

Tentative Ruling: DENY as untimely; no good cause is shown.

Plaintiffs Nathan Walker and Christine Walker filed this Song-Beverly action on 6/22/21 regarding their purchase of a 2017 Chrysler Pacifica on 9/13/16 with defects related to its electrical system, transmission, engine, stalling, and collision warning system, among others. The operative Second Amended Complaint, filed 6/16/23, against Defendants FCA US LLC and Hemet Chrysler Dodge Jeep Ram, asserts: (1) Civil Code section 1793.2(d); (2) Civil Code section 1793.2(b); (3) Civil Code section 1793.2(a)(3); (4) express warranty; and (5) implied warranty. The parties exchanged only written discoveries; no deposition was taken and no discovery motion was filed. Defendant offered \$172,500 to settle before trial, which Plaintiffs accepted on 6/6/23.

On 6/13/24, the parties filed a joint stipulation to dismiss. The court entered dismissal on the same day.

Now, Plaintiffs move for \$49,830.52 in total compensation, consisting of: (1) \$32,351 in attorney fees; (2) a 1.35 multiplier enhancement of \$11,322.85; (3) \$2,656.67 in costs and expenses; and (4) an *anticipated* \$3,500 in connection with this fee motion's opposition and reply. They argue that the requested hours and rates are reasonable.

In opposition, Defendant argues that the motion is time-barred under *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644 and California Rules of Court, rule 3.1702, as Plaintiffs missed the 180-day deadline. Alternatively, Defendant argues that the requested fees are excessive and requests a reduction.

In reply, Plaintiffs argue that the motion is not untimely. Alternatively, they assert that good cause exists to excuse any delay. They maintain that their rates and hours are reasonable and that the multiplier is warranted for a two-year delay in receiving fees.

California Rules of Court, rule 3.1702(b)(1) states that:

"A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court... must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case..."

(Emphasis added.) Under rule 8.104(a)(1)(C), the time limit to file a notice of appeal is "180 days after entry of judgment."

In *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 649 ("*Hatlevig*"), the Court of Appeal held that "[a] voluntary dismissal is 'effectively a 'judgment' within the meaning of the rule prescribing the time to appeal... Thus, the clock starts to run [on the time to move for attorney fees] from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock)." (*Hatlevig v. General Motors LLC, supra*, 118 Cal.App.5th at 649, internal citations omitted.)

Here, the court entered the voluntary dismissal with prejudice on 6/13/24. Under *Hatlevig* and rule 3.1702, Plaintiffs' 180-day deadline to file and serve their motion for attorneys' fees expired on 12/10/24. Plaintiffs did not file the motion until 4/22/26.

In reply, Plaintiffs made several arguments to escape this timeline. First, Plaintiffs argue that voluntary dismissals from section 998 settlements are ministerial acts and are not appealable, so rule 3.1702's deadline was never triggered. *Hatlevig* rejected this argument. Reading the *Hatlevig* case as a whole, the court concluded that a deadline must be enforced. (*Hatlevig v. General Motors LLC, supra*, 118 Cal.App.5th at 650.) Next, Plaintiffs argue that under *Meinhardt v. City of Sunnyvale* (2024) 16 Cal.5th 643 ("*Meinhardt*"), courts are prohibited "from construing non-judgment filings as judgments" to dismiss claims as untimely. However, the *Meinhardt* case discussed whether an administrative mandamus order is an appealable final judgment, and the court did not address voluntary dismissals. Lastly, Plaintiffs assert that the parties' stipulation to retain jurisdiction under CCP §664.6 would indefinitely extend the deadline. I disagree with this interpretation. Section 664.6 preserves the court's subject-matter jurisdiction to hear a motion. It would not toll the procedural timelines as set by the Rules of Court.

As to Plaintiffs' argument for good cause, California Rules of Court, rule 3.1702(d) permits the court to extend the time for filing a fee motion "for good cause." "[T]he essential ingredients of reasonable grounds and good faith are at the nucleus of the concept of good cause. This view of good cause contains an objective component (i.e., reasonable grounds) and a subjective component (i.e., good faith)." (*People v. Accredited Surety Casualty Co.* (2014) 230 Cal.App.4th 548, 559-560, internal citations omitted). Here, however, Plaintiffs' reply did not provide any compelling reason or objective obstacle that prevented them from filing the instant motion within the 180-day deadline after dismissal. As such, no good cause is shown.

No good cause is shown to excuse the delay.